

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariana Thomas	Team: Squad #16	CCRB Case #: 202203862	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/14/2022 5:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/14/2023	Precinct: 40		
Date/Time CV Reported Tue, 06/14/2022 1:30 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 06/14/2022 1:30 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An officer			
3. DT3 Daniel Silverio	05916	943816	WARRSEC
4. DT3 Ryan Sheehan	06100	955475	JUV CRM

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Michael Summa	03594	947525	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Daniel Silverio	Discourtesy: Detective Daniel Silverio spoke discourteously to § 87(2)(b)	A . Unable to Determine
B . DT3 Daniel Silverio	Abuse: Detective Daniel Silverio threatened to damage § 87(2)(b) property.	B . Unable to Determine
C . DT3 Daniel Silverio	Off. Language: Detective Daniel Silverio spoke offensively regarding § 87(2)(b) actual or perceived disability.	C . Unable to Determine
D . DT3 Daniel Silverio	Discourtesy: Detective Daniel Silverio spoke discourteously to § 87(2)(b)	D . Unable to Determine
E . DT3 Daniel Silverio	Abuse: Detective Daniel Silverio entered § 87(2)(b) in the Bronx.	E . Within NYPD Guidelines
F . DT3 Ryan Sheehan	Abuse: Detective Ryan Sheehan entered § 87(2)(b) in the Bronx.	F . Within NYPD Guidelines
G . DT3 Daniel Silverio	Abuse: Detective Daniel Silverio searched § 87(2)(b) in the Bronx.	G . Within NYPD Guidelines
H . DT3 Ryan Sheehan	Abuse: Detective Ryan Sheehan searched § 87(2)(b) in the Bronx.	H . Within NYPD Guidelines
I . Officers	Abuse: Officers failed to provide § 87(2)(b) with a business card.	I . Officer(s) Unidentified
J . An officer	Abuse: An officer searched § 87(2)(b)	J . Officer(s) Unidentified
K . An officer	Off. Language: An officer made remarks to § 87(2)(b) based upon race.	K . Officer(s) Unidentified
L . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	L . Officer(s) Unidentified

Case Summary

On June 14, 2022, § 87(2)(b) filed this complaint on behalf of her mother, § 87(2)(b) via the CCRB's website.

On June 14, 2022, at approximately 05:30 a.m., § 87(2)(b) who is blind and speaks limited English, awoke to the sound of officers banging on her apartment door at § 87(2)(b) in the Bronx. § 87(2)(b) asked who was at the door and Detective Daniel Silverio, of the Regional Fugitive Task Force, allegedly spoke discourteously to § 87(2)(b) and told her, "If you don't open the fucking door, we are going to fucking break it down" (**Allegation A: Discourtesy, Unable to Determine; Allegation B: Abuse of Authority, Unable to Determine**). Det. Silverio allegedly asked § 87(2)(b) in Spanish, "Tu eres ciega de verdad?" ("Are you really blind?") (**Allegation C: Offensive Language, Unable to Determine; Allegation D: Discourtesy, Unable to Determine**). § 87(2)(b) opened the door and Det. Silverio, Det. Ryan Sheehan of the Juvenile Crime Section, and U.S. Marshals entered and searched her apartment (**Allegations E-H: Abuse of Authority, Within NYPD Guidelines**). § 87(2)(b) asked all the officers for their business cards, in English, which they allegedly refused to provide (**Allegation I: Abuse of Authority, Officer(s) Unidentified**). An officer allegedly searched § 87(2)(b) wallet for her ID (**Allegation J: Abuse of Authority, Officer(s) Unidentified**). An officer allegedly told § 87(2)(b) "If you don't speak English, shut up," "So much time here and you still don't know how to speak English," and, "Why don't you know how to speak English?" (**Allegation K: Offensive Language, Officer(s) Unidentified; Allegation L: Discourtesy, Officer(s) Unidentified**).

Surveillance footage, which captures the entranceway to § 87(2)(b) and the hallway leading to § 87(2)(b) apartment, was obtained from § 87(2)(b) Security (**Board Review 01**). There is no body-worn camera ("BWC") footage, as the officers involved were not equipped BWCs (**Board Review 02**). There is no other video evidence.

§ 87(2)(g)

Findings and Recommendations

Allegation (A) Discourtesy: Detective Daniel Silverio spoke discourteously to § 87(2)(b)

Allegation (B) Abuse of Authority: Detective Daniel Silverio threatened to damage § 87(2)(b) property.

Allegation (C) Offensive Language: Detective Daniel Silverio spoke offensively regarding § 87(2)(b) actual or perceived disability.

Allegation (D) Discourtesy: Detective Daniel Silverio spoke discourteously to § 87(2)(b)

Allegation (E) Abuse of Authority: Detective Daniel Silverio entered § 87(2)(b) in the Bronx.

Allegation (F) Abuse of Authority: Detective Ryan Sheehan entered § 87(2)(b) in the Bronx.

Allegation (G) Abuse of Authority: Detective Daniel Silverio searched § 87(2)(b) in the Bronx.

Allegation (H) Abuse of Authority: Detective Ryan Sheehan searched § 87(2)(b) in the Bronx.

Allegation (I) Abuse of Authority: Officers failed to provide § 87(2)(b) with a business card.

Allegation (J) Abuse of Authority: An officer searched § 87(2)(b)

Allegation (K) Offensive Language: An officer made remarks to § 87(2)(b) based upon race.

Allegation (L) Discourtesy: An officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that she awoke to the sound of loud banging on her apartment door (**Board Review 03**). § 87(2)(b) who is completely blind, was home alone with her service animal, a Pitbull. § 87(2)(b) is a two-bedroom apartment that has an entry into a narrow hallway. Walking down the hallway, § 87(2)(b) room is to the left. To the right of § 87(2)(b) room is a bathroom. Across from the bathroom is another bedroom, where § 87(2)(b) § 87(2)(b) daughter, § 87(2)(b) who lives in Florida, stays when she visits New York. At the end of the hallway is a living room. To the left of the living room is a small dining area with a kitchen. § 87(2)(b) has lived at § 87(2)(b) since § 87(2)(b). She is currently the only person on the lease. § 87(2)(b) and § 87(2)(b) son were on the lease until 15 years ago. § 87(2)(b) and § 87(2)(b) § 87(2)(b) ex-boyfriend, all receive mail at the apartment. § 87(2)(b) has not seen or spoken to § 87(2)(b) in five years. § 87(2)(b) § 87(2)(b) family lives in the basement of the apartment building. § 87(2)(b) believes that § 87(2)(b) § 87(2)(b) wrongfully lists her address as his own because he does not want the police to know where he lives. § 87(2)(b) § 87(2)(b) has never been on the lease and only occasionally used to stay with § 87(2)(b) the last time being over five years ago. § 87(2)(b) always tells the person who delivers her mail that § 87(2)(b) § 87(2)(b) does not live there and returns the mail to its sender.

On June 14, 2022, § 87(2)(b) ignored the banging at her apartment door for a few minutes, but then it became louder, so she walked towards the door. § 87(2)(b) said, in English, “Who?” A male voice with an “American accent” responded, “It’s the police. Open the fucking door.” § 87(2)(b) § 87(2)(b) asked, in English, “Who are you looking for? What do you want?” The officer did not respond to her questions and repeatedly ordered her to, “Open the fucking door” and “Fucking open the door.” § 87(2)(b) who was wearing a robe, yelled, in Spanish, “Let me change. I cannot see. I am blind.” The officer said, “If you don’t open the fucking door, we are going to fucking break it down.” A male voice with a “Dominican accent” asked § 87(2)(b) in Spanish, “Tu eres ciega de verdad?” (“Are you really blind?”). Approximately five minutes later, § 87(2)(b) opened the door. Once she did so, officers entered the apartment without saying anything. The officers never asked to come inside and § 87(2)(b) never invited them inside. Once they entered, the officer with the “Dominican accent” ordered § 87(2)(b) to stay where she was. § 87(2)(b) asked all the officers for their business cards, in English. The officers said, “Shut up,” and § 87(2)(b) did not ask again. As § 87(2)(b) stood by the front door, she heard officers go into the bedrooms, though she could not specifically say what the officers did inside the rooms nor which officers were involved, as she could not see. The officers never asked if they could search, and § 87(2)(b) never told them that they could. After approximately five minutes, the officer with the “American accent” ordered § 87(2)(b) to walk forward and guided her towards the living room. While § 87(2)(b) § 87(2)(b) stood in the living room, the officer with the American accent ordered her to produce ID. § 87(2)(b) in Spanish, said she could go get it from on top of her dresser in her room. The same officer then shouted, “Don’t move, I’ll go get it.” § 87(2)(b) heard the officer walk to her room and then return to the living room, where he stood close to her, as she heard him going through her wallet to locate her ID. § 87(2)(b) approached the officer with the “Dominican accent” and, in Spanish, said, “If you speak Spanish, why don’t you speak Spanish to me?” The officer with the “American accent” said, “If you don’t speak English, shut up,” “So much time here and you still don’t know how to speak English,” and, “Why don’t you know how to speak English?” The officer with the “Dominican accent” said, “No te dije que te callaras?” (“Didn’t I tell you to shut up?”) in Spanish. Without saying anything, and after being in the apartment for approximately one hour, § 87(2)(b) § 87(2)(b) heard the officers leave. § 87(2)(b) walked to the apartment door, which the officers left open, and closed it without issue. Later that day, § 87(2)(b) home attendant, § 87(2)(b) arrived at the apartment and informed § 87(2)(b) that the officers left all of the cards that are typically in

her wallet on the floor, that all the beds were undone, clothes were all over the apartment floor, that everything, including lotions, perfumes, and clothing, that had been in § 87(2)(b) dresser in her bedroom were moved from where they normally are. § 87(2)(b) believed that the officers were at her apartment to look for § 87(2)(b) because there was no other reason for them to be there, though they never said who or what they were looking for.

In surveillance footage (**Board Review 01**), which captures the entranceway to § 87(2)(b) and the hallway leading to § 87(2)(b) apartment, at 24:10, approximately 10 U.S. Marshals, who wear green helmets or caps and “U.S. Marshal” vests, Detective Michael Summa, of the Bronx Warrant Squad, a white man who wears a black t-shirt under a black “Warrant Squad” vest, Det. Silverio, a Hispanic man who wears a blue long sleeve shirt, and Det. Sheehan, a white man who wears a green “NYPD” shirt, enter the hallway outside of § 87(2)(b) apartment. At 25:00, Det. Summa and Det. Silverio remain at the end of the hallway as the U.S. Marshals and Det. Silverio approach Apartment § 87(2)(b). A U.S. Marshal knocks on the door, and appears to be speaking, though there is no audio, as Det. Silverio remains near the door. It is unclear if he is speaking. At 28:33, § 87(2)(b) apartment door opens. At 28:48, a U.S. Marshal enters the apartment. At 29:15, Det. Silverio enters the apartment and all the U.S. Marshals follow inside. At 29:50, Det. Sheehan and Det. Summa walk towards the apartment. At 30:00, Det. Summa exits the apartment building as Det. Sheehan remains standing outside the apartment. At 31:10, Det. Sheehan enters the apartment and stands in the entranceway. At 31:38, five U.S. Marshals and Det. Sheehan exit the apartment. At 31:50, Det. Sheehan reenters the apartment and stands in the entranceway. At 32:04, Det. Sheehan walks further into the apartment, such that he is no longer visible. At 33:33, Det. Sheehan and a U.S. Marshal exit the apartment and stand in the hallway. At 35:00, Det. Sheehan reenters the apartment. At 41:05, Det. Sheehan, one male U.S. Marshal, one female U.S. Marshal, and Det. Silverio exit the apartment and the apartment building.

Det. Silverio testified that this investigation was led by the U.S. Marshals as it was their case (**Board Review 04**). The U.S. Marshals and the NYPD were conducting an approximately one-month long operation called Operation North Star, where the NYPD and the U.S. Marshals were to apprehend civilians involved in many cases. § 87(2)(e), § 87(2)(f)

Det. Silverio explained that the NYPD officers’ roles varied depending on the circumstances of the case. If the case was assigned to him, Det. Silverio had a more direct role, in that he spoke to civilians, while the U.S. Marshals conducted the search. Otherwise, Det. Silverio was not as involved. The day before the incident, Det. Silverio received an email from U.S. Marshal Frederick Porcaro, which he read into the record: “Tomorrow, Tuesday June 14, 2022, we will be conducting an enforcement op for § 87(2)(b) Operation details: Operation North Star. Subject: § 87(2)(b). Date: 6/14/2022. Time: 05:00. Meet location: 40 Precinct. Charge: § 87(2)(b) Address: § 87(2)(b), Bronx NY.” The U.S. Marshals had an arrest warrant for § 87(2)(b). Det. Silverio did not know if there was a search warrant for § 87(2)(b).

On June 14, 2022, Det. Silverio was assigned to the perimeter of § 87(2)(b) and did not believe that he entered the building or § 87(2)(b). When provided with details of the complaint, as provided to the CCRB by § 87(2)(b) Det. Silverio’s recollection of the incident was not refreshed, and he did not recall if he ever spoke to § 87(2)(b). He did not remember anything about this incident because it was uneventful. The officers did not apprehend § 87(2)(b). Prior to the officers and U.S. Marshals arrival, a tactical meeting was held at the 40th Precinct, where Det. Silverio was assigned to conduct perimeter security. Det. Silverio did not know which other NYPD officers were present and was not familiar with Det. Sheehan nor Det. Summa. Det. Silverio never took any steps to locate § 87(2)(b); the address was located by the U.S.

Marshals. He did not remember which U.S. Marshals were present during this incident, besides U.S. Marshal Porcaro, and he did not remember if any of the U.S. Marshals present spoke Spanish. Det. Silverio speaks Spanish. When presented with surveillance footage (**Board Review 01**), Det. Silverio stated that the female U.S. Marshal captured, Tiffany, was the only U. S. Marshal who spoke Spanish. Another U.S. Marshal supervisor, captured in the center of the frame at 26:09, speaks limited Spanish. The other NYPD officers present did not speak Spanish. Even after watching the surveillance video during his CCRB interview, Det. Silverio still did not remember the incident. He acknowledged that he saw himself in the footage entering the apartment but did not have an independent recollection of doing so. Det. Silverio stated that, based on the video, he was not the officer speaking to § 87(2)(b) a U.S. Marshal in front of him was. Det. Silverio stood back while the U.S. Marshals, who were leading the investigation, communicated with § 87(2)(b). Det. Silverio denied ever saying, “Open the fucking door” or “Fucking open the door” and never heard any U.S. Marshal or any NYPD officers say this. Det. Silverio denied ever threatening to break down § 87(2)(b) door or saying, “If you don’t open the fucking door, we are going to fucking break it down,” and never heard any NYPD officer or U.S. Marshal say that. Det. Silverio did not remember if he ever became aware that § 87(2)(b) was blind. Det. Silverio did not remember if he ever said, “Tu eres ciega de verdad,” (“Are you really blind?”) in Spanish and never heard any NYPD officer or US Marshal say this. Det. Silverio did not remember any conversation at the door. Det. Silverio never made any comments towards § 87(2)(b) regarding her physical disability and never heard any officer do so. Det. Silverio did not remember speaking at all during this incident. He did not remember if he ever asked to enter the apartment or if he ever searched the apartment. Det. Silverio did not remember if he ever ordered § 87(2)(b) to produce ID or searched her wallet for her ID and he did not see any NYPD officer or U.S. Marshals do so. Det. Silverio never told § 87(2)(b) “If you don’t speak English, shut up,” “So much time here and you still don’t know how to speak English. Why don’t you know how to speak English?” and did not hear any NYPD officers or U.S. Marshals say that. Det. Silverio never made any comments toward § 87(2)(b) regarding her perceived language ability and never heard any officer do so. Det. Silverio explained that his mother does not even speak English, so he would never make comments regarding § 87(2)(b) language ability. § 87(2)(b) never requested Det. Silverio’s business card, and he never offered her one because he was not assigned this case.

Det. Sheehan § 87(2)(g) testified that § 87(2)(b) had an active bench warrant, § 87(2)(b). Det. Sheehan was not assigned this case and did not know who was. Once at the location, U.S. Marshals knocked on the apartment door for approximately two to three minutes, as Det. Sheehan stood approximately 15 feet from the apartment door. Det. Sheehan could not hear well what was happening at the door from the distance at which he was standing. An older woman, identified via the investigation as § 87(2)(b) opened the door. There was a conversation at the door between § 87(2)(b) and a Spanish speaking officer, Det. Silverio. Det. Sheehan did not know what was said because he does not speak Spanish. He did not recall if the conversation took place before or after the door was opened. Det. Silverio was the only officer, in general, speaking to § 87(2)(b) at the door. Det. Sheehan never heard officers say, “Open the fucking door,” “Fucking open the door,” “If you don’t open the fucking door, we are going to fucking break it down,” or threaten to break down § 87(2)(b) door and denied doing so himself. Det. Sheehan did not remember becoming aware that § 87(2)(b) was blind. Det. Sheehan did not know if he ever heard an officer say, “Tu eres ciega de verdad?” and he never said that because he does not speak Spanish. Det. Sheehan remained in the doorway while the U.S. Marshals entered and searched. Once the apartment was cleared, Det. Sheehan entered. NYPD officers were not involved in the search for § 87(2)(b). Det. Sheehan looked under a bed inside a bedroom in the apartment to ensure that no one missed anything. Det. Sheehan did not recall if he ever searched a wallet inside the apartment and denied seeing Det. Silverio do so. Det. Silverio did not know if officers asked § 87(2)(b) if they could search the

apartment, as the conversation was in Spanish. Det. Sheehan knew that an officer informed § 87(2)(b) that the officers had a bench warrant for § 87(2)(b) though he did not recall which. In the living room, after the U.S. Marshals finished their search, Det. Silverio interviewed § 87(2)(b) in Spanish for approximately five to 10 minutes, as Det. Sheehan sat close by. Given that he does not speak Spanish, Det. Sheehan did not understand any of this conversation. § 87(2)(b) was calm when speaking to Det. Silverio. Det. Sheehan did not recall hearing any officer say, “If you don’t speak English, shut up. So much time here and you still don’t know how to speak English. Why don’t you know how to speak English?” and he denied doing so himself. Det. Sheehan never made any statements to § 87(2)(b) regarding her perceived language ability and denied hearing any officer do so. Det. Sheehan did not recall if § 87(2)(b) ever requested his business card and he did not remember if he ever offered her his business card, as he was not speaking to her.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegations A through D** be closed as **Unable to Determine**.

In Payton v. New York, 445 U.S. 573, the Court held that an arrest warrant permits an officer to enter a residence provided that they reasonably suspect it is a suspect’s residence, and they reasonably believe the suspect is present at the time they enter (**Board Review 06**). In United States v. Magluta, 44 F.3d 1530, the courts upheld an entry during an arrest warrant execution at 7:30 a.m. because it was reasonable to have believed that the subject would be sleeping at that time (**Board Review 07**).

The “fellow officer rule” states that a police officer is allowed to rely upon information provided by a fellow officer and need not have personal knowledge of said information, People v. Clark, 216 A.D.2d 919 (**Board Review 08**).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **Allegations E through H** be closed as **Within NYPD Guidelines**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **Allegations I through L** be closed as **Officer(s) Unidentified**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party (**Board Review 09-10**).
- Det. Silverio has been a member of service for 16 years and has been a subject in 18 CCRB complaints and 60 allegations, five of which were substantiated.
 - Case #201201095 involved substantiated allegations of a stop and frisk. The Board recommended Charges and the NYPD imposed a forfeiture of three vacation days.
 - Case #201905329 involved a substantiated allegation of a failure to provide RTKA card. The Board recommended Command Discipline A, which the NYPD imposed.
 - Case # 201905365 involved a substantiated allegation of a failure to provide RTKA card. The Board recommended Command Level Instructions, which the NYPD imposed.
 - Case #202003405 involved a substantiated allegation of an entry of premises. The Board recommended Formalized training, which the NYPD imposed. § 87(2)(g)
- Det. Sheehan has been a member of service for nine years and has been a subject in three CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 6, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**Board Review 11**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 16

Investigator:	Ariana Thomas	Inv. Ariana Thomas	05/03/2023
	Signature	Print Title & Name	Date

Squad Leader:	Patrick Yu	IM Patrick Yu	05/04/2023
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date